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Review of Neville Jayaweera's Jaffna: Exorcising the Past and Holding the Vision

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DEVANESAN NESIAH ([HTTPS://WEB.ARCHIVE.ORG/WEB/20240526215606/HTTPS://GROUNDVIEWS.ORG/AUTHOR/DR-NESIAH/](https://web.archive.org/web/20240526215606/https://groundviews.org/author/dr-nesiah/))

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Part I

When I was asked by Marshall Fernando whether I would review the above, I readily agreed. Neville was several years senior to me in the Ceylon Civil Service and also served as Government Agent (GA) Jaffna but 18 years before my turn. I know him well and have some familiarity with his career till he left the Island prematurely. Further, during his 03 months as GA Badulla, I was his deputy. He is widely regarded as one of the most distinguished of many eminent members of the Ceylon Civil Services. His tenure in Jaffna was particularly well appreciated, even by many who were deeply distrustful of him when he first arrived there.

The Indian and Ceylon Civil Services (CCS), inherited from British colonial rule, were enormously prestigious and powerful but nominally nonpolitical institutions. In particular, the office of Government Agent (Collectors in pre-partition India) had authority over almost every branch of Civil Administration. Neville was privileged to be in the CCS till its dilution into the Sri Lanka Administrative Service (SLAS) in 1963, and to have served as a GA for many years. With such authority, comparable to that exercised by the earlier British Civil servants, the powers of the GA were enormous. Further, Neville had the virtually unqualified support of Prime Minister Srimavo Bandaranaike. He made use of these powers to a degree that few other Government Agents did. The book I am reviewing is largely about what Neville did in his three years as GA Jaffna, the immediate consequences of his actions and of the subsequent developments over which he had no control as he was not only out of office but also out of favor.

While I have much respect for Neville I have several reservations on parts of his book, particularly on the Appendix which, incidentally, is the largest chapter of his book. My review article is there for in two Parts. My response in part 1 is mostly positive. Part 11, which mainly concerns the Appendix, is much more critical and also includes some of my own views on the caste system. My view of caste ideology is very much in line with Neville's but I have evidence that he has got some of his facts wrong, particularly in relation to caste in India and Manusmriti.

I thought my task would be easy; it was not. I would readily endorse virtually all of Susil Sirivardana's Preface setting out his superlative assessment of the man and his record, and Michael Robert's Foreword containing a similar assessment except that Michael challenges Neville on a few points including his estimate of the caste composition of Jaffna and related political and socio-economic impact, and Neville's failure to note the relative autonomy of the Karaiyars (and the corresponding autonomy of the Karavas among the Sinhalese) and their consequent political independence. Michael also faults Neville for being "prone to emphasise the great man view of history" and neglecting the class forces driving them. I have my own rather different reservations on some of Neville's views, and these will be elaborated in the course of this paper. For the benefit of those who have not yet read the book I have included some highlights of his key findings.

The Prologue written in September 2013 after the first ever election to the Northern Provincial Council, is 39 pages long and is in many ways the most important chapter of this book. It contains the essence of Neville's analysis and recommendations. These are elaborated in greater details in the later chapters including the two Epilogues. The very valuable 42 pages long Appendix is the product of painstaking research, but contains some errors that I deal with in Part 11.

The point on Sinhala-Tamil conflict resolution that Neville makes in the opening page of the Prologue is admirable and factually unquestionable except that there is a fundamental asymmetry in Sinhala-Tamil relations over the centuries. The Tamil kings of South India were frequently invaders who repeatedly conquered and

pillaged Sinhalese kingdoms and, in Sinhalese literature and history, they are regarded as the enemies of the Sinhalese. On the other hand the Tamils of India had no reason for any hostility to the Sinhalese whom their kings regarded as people to be plundered at will. In fact I understand from Tamil scholars that there are no signs of hostility to the Sinhalese in Tamil literature and history, whether in South India or in Sri Lanka. In contrast Sinhala-Tamil power relationship within Sri Lanka is weighted in favor of the Sinhalese, who are the dominant population on this Island, and may be regarded by many Tamils in Sri Lanka as oppressors.

Even this conflict is largely a product of the mid- and late 20th century and early 21st century. For the greater part of centuries past, Sinhala-Tamils relations had been cordial, marred only by occasional wars between rival kings. Even in these wars, almost invariably, there had been Sinhalese and Tamils on both sides. In fact Sinhala and Tamil identities have been fluid for centuries till they were gradually frozen on account of the census declaration of ethnic identity required in terms of the administrative procedures introduced under colonial rule. The problem is that the justifiable grievances that the Sinhalese have against South Indian kings in centuries long past are being visited in recent decades on the Tamils in Sri Lanka, who had no hand in the invasions by the South Indian kings.

Nevertheless in the last few decades Sinhala Tamil animosity within Sri Lanka has become so deep that, as in Neville's words, "its resolution will require more than rhetoric and denunciations from either side, or a military triumph of one side over the other. It will require a visionary understanding of history, and willingness on both sides to conciliate on a scale not evidenced hitherto". It would surely help if great Tamil classics such as Silappathikaram and Manimehalai are made easily available in Sinhalese translations to Sinhalese children. Similarly Rev. Dharmaratna Thero's Buddhism in South India should be made easily available in Tamil and Sinhala translations since it underlines the close social, cultural and religious link between Sinhalese and Tamils over several centuries. In fact the Pattini cult, widely prevalent among the Sinhalese is derived from Silappathikaram; and Manimehalai, another great Tamil classic, was written by a Buddhist monk and its heroine is a Tamil Buddhist nun who had at a critical stage found sanctuary in Nagadeepa/Nainativu in Sri Lanka. Bikku Dharmaratna wrote of the centuries during which Buddhism was the dominant religion of the Tamils in South India and Sri Lanka. During this period Tamil Buddhist scholars and missionaries set out from centers in South India such as Kanchi, South to Sri Lanka, North to Nalanda and elsewhere and East to every region of South East Asia and beyond to every region of Pacific Asia. Both Sinhalese and Tamils need to understand that the Buddhism was the common religion of their ancestors for many centuries. One of the greatest heads of Nalanda University was Venerable Dhammapala Thero from Tamil Nadu. Buddhism is not an alien religion for the Tamils, nor Hinduism an alien religion for the Sinhalese.

Neville lists five watersheds the Sri Lanka has crossed in recent years that compelled him to publish these memoirs of which the greater part were written around fifty years ago and then consigned to limbo. These watersheds are:

1. (the most important) The crushing defeat of the LTTE in 2009, ensuring that there will not be any armed uprising by the Tamils in the foreseeable future
2. The publication of the report of the LLRC, which he regards as "the most intelligent and balanced analysis of the ethnic conflict ever written by any Presidential Commission in Sri Lanka"

3. The holding of the first ever elections to the Northern Provincial Council under the 13th Amendment
4. The visit to Sri Lanka in August 2013 of Dr. Navaneethampillai, UNHCHR, and the explosive report she released
5. The overwhelming victory registered by TNA on 21 September 2013 and the setting up of the first Northern Provincial Council

Just before he assumed duties in Jaffna he was briefed by N.Q.Dias, Secretary/ Defence and External Affairs and, more important, *de facto* Chief Advisor to Prime Minister Mrs.Bandaranayake, particularly on all matters pertaining to the ethnic conflict. N.Q instructed Neville on why he was handpicked to be GA Jaffna at this stage and what his task was. Neville was directed to force “confrontation” upon the Tamil parties at every turn possible, and to establish the Government’s “absolute ascendancy” over them in every crisis. Neville was under his spell when he assumed duties in Jaffna.

As Neville confesses, being “chosen as the pivot of N.Q.Dias’s master plan to enforce the Official Language Act throughout Jaffna, to encircle the North with Military camps and bring the Tamils to heel, released in me a spirit of a Sinhala Conquistador resolved to plant the Land Flag and establish Sinhala supremacy among a troublesome Tamil people ... Uncharacteristically for an incoming GA, barring Ivan Samarawickrema the AGA, a Sinhala Officer, not a single local officer was on hand to greet us”. Even after moving into the Residency, only Ivan and two Burgher officials called on the GA. “The wall of hostility was palpable and impregnable...The word had got around that I had been handpicked for Jaffna by the Prime Minister and her Permanent Secretary Mr. N.Q. Dias, to do a hatchet job on the Tamils, which of course was pretty close to the truth!”.

Not surprisingly at the first meeting with the Members of Parliament at his first District Coordinating Committee meeting in Jaffna , there was a crisis that brought the meeting to a pre mature close on a sour note. After much agonizing, Neville became deeply convinced that what was unfolding in Jaffna was unjust. Only a few months into his tenure in Jaffna, he telephoned the Prime Minister and requested an unofficial, personal and confidential meeting with her. She asked him to see her the very next evening. Neville went to meet her but was dismayed to find that she had also invited N.Q. Dias to that meeting.

At that meeting the Prime Minister asked Neville what problems he had in Jaffna that needed her intervention. Neville listed three problems:

1. The practicalities of implementing the Official Languages Act commencing from 1st October 1963, which was the due date. He did not have the resources to do so.
2. The wisdom and morality of enforcing the Official Language Act in Jaffna under which all registrations of birth, marriages and deaths, all correspondence with members of Tamil public, and the languages of the courts and court records should be in Sinhala. That would be grossly unfair by the people and any attempt to force the issue would only aggravate hatred and conflict. At this point “N.Q. Dias butted in and insisted that the decision to implement the Official Languages Act in Jaffna cannot be withdrawn” Neville replied, “Sir, how would you like to have your children’s marriage certificates issued in Tamil, or your grand children’s birth certificates issued in Tamil or your own death certificate issued to your next of kin in Tamil?”. Neville went on to urge that the Government must allow the GA Jaffna to implement the draft

Reasonably Use of Tamil Act (conceived by her late husband but not yet gazetted or passed in parliament) within his district at least in the spirit if not in the letter.

3. The Tamil leaders were mobilizing for a “Secessionist Campaign” due to be launched in two weeks. He asked for approval to deal with that campaign in his own way through dialogue and conciliation

In conclusion Neville assured her that before he completes his tenure in Jaffna he will create climate in Jaffna within which the government and the Tamil parties will be able to resume a dialogue. To Neville surprise she endorsed Neville’s proposal on condition that it was done discreetly and not publicised as a change of government policy.

Accordingly, on his return to Jaffna, without any official announcement, he allowed the Official Languages Act to lapse within Jaffna and instead implemented the provisions of the draft Reasonably Use of Tamil Act. Although letters and telegrams from government departments in Colombo to the people resident in Jaffna continued to be in Sinhala only, it soon became clear to the people of Jaffna that the GA in Jaffna was not forcing the Sinhala only policy down their throats. Many Tamil politicians remained deeply suspicious but eventually they too realized that there was a fundamental change in practice in Jaffna relating to the Official Language Act. This awareness defused the crisis and led to good relations and cooperation between Neville, the Tamil political leadership and the people of Jaffna till the end of Neville’s tenure in Jaffna; though the underlying political problem remained unresolved.

Neville identifies six motors of the ethnic conflict, viz:

1. (the primary motor) “... the intransigence of the Sinhala leadership, its lack of a vision of a fully integrated Sri Lankan nation, and its inability to make the compromises required for achieving it ...”

“More than the power it derives from an overwhelming superiority in numbers, what exalts any majority community. And endows it with a true greatness and moral authority, is its willingness to accord to all those other communities who lack the advantage of numbers, a status and a dignity equal to its own, and never let them feel marginalized or disadvantaged because they are fewer in number, or because they are different in colour or beliefs.

Unless and until Sri Lanka can produce leaders who can realize that truth, and are willing to act on it, it will continue to be mired in conflict”

1. ... the self-alienation of Tamil parties from the main stream of national politics ... They had nothing to say on such catalytic national issues such as free education, the rice subsidy, nationalization policies, schools taken over, land reform, the closed economy of the 1970s, the open economy of the 1980s, trade unionism, the two JVP uprisings, poverty alleviation – Janasaviya, the steady erosion of standards in public life, deepening corruption, and the breakdown of law and order, etc, etc.
2. ... the myopia of the Tamil Vellalar class in failing to realize that for centuries it had been perched atop a volcano of discontent [among the Tamil underclass] in its own backyard.
3. ... the upsurge of the aforesaid Tamil under class that had for centuries lived on the fringes of Tamil society as an impoverished community of non- persons

4. ... the idiocy of the LTTE in failing to realize that as long as the Indian Union lasted...Eelam was never attainable

5. ... India's intervention on the side of the rebels in the 1980s

Neville repeatedly refers to N.Q. Dias's prophetic vision, far ahead of the political leaders, of an impending Indian intervention, of the civil war to come, and of the preparation needed to counter these, but concluded that "Dias would have been a far greater visionary and a truly great leader, had he aborted the Tamil uprising by removing the factors that were fuelling it, than assume it to be inevitable and prepare militarily to combat it, which was what he did".

Neville is highly appreciative of the unfailing support of Prime Minister Srimavo Bandaranaike to him and his administration throughout his tenure in Jaffna, even over riding N.Q. Dias as well as the IGP and the three service commanders. But he goes on to say "I must place on record my extreme disappointment that the Srimavo Bandaranaike government of 1960=65 failed to build on the ground work I had laid in Jaffna. Surely, the reproach of history will weigh heavily on them". Neville identifies "only two national leaders [who in his opinion] had a vision of a fully integrated and organic Sri Lanka and took a proactive stance towards achieving it. One was the archetypal Sinhala-Buddhist President Ranasinghe Premadasa and the other was President Chandrika Bandaranaike Kumaratunge. I would go along with Neville's assessment with the proviso that President Premadasa was the ultimate hands on politician, opposed to any meaningful devolution, and therefore unacceptable to the Tamils and Muslims of the North and East. That leaves President Chandrika Bandaranaike Kumaratunge and any as yet unidentified future leader as fitting Neville's prescription.

Before I conclude part I I need to refer to Neville's encounter with Handy Perinbanayagam who he condemns as a traitor. I am unaware of the full detail of the encounter, but Neville is surely mistaken. Throughout his political life, through the history of Jaffna Youth Congress that he helped to found and lead, Handy Perinbanayagam had been an unfailing champion of national unity, of the study of both Sinhala and Tamil in every school in the Island, and an uncompromising opponent of secession. Clearly, Neville had misunderstood his remarks and come to a hasty conclusion. For those interested, Silan Kadirkamar, a historian, has published a book containing speeches of Handy Perinbanayagam and the history of the Jaffna Youth Congress (Handy Perinbanayagam: A Memorial Volume, ed.Silan Kadirkamar, 2012 Kumaran Book House, Colombo and Chennai).His ideology is also evident from the following submission to the Constituent Assembly in 1972, made by a group in Jaffna associated with him.

"If Sri Lanka is to be true to herself, those who are charged with the solemn duty of writing her Constitution should pay heed to our heritage both in the approach to constitution making and in what they write into it. Our children and our children's children should be able to say, with one voice – Lanka is our great motherland, and we are one people from shore to shore, we speak two noble languages, but with one voice, and this Constitution which our fathers fashioned together in times of yore shall serve as our nation's charter for the years to be".(quoted in K.Nesiah, 1983, Education and Human Rights in Sri Lanka, Chunnakam, Christian Institute for the Study of Religion and Society in Sri Lanka).

Part II

Review article on Neville Jayaweera's Jaffna: Caste in Jaffna and India

Neville's extensive research into caste in Jaffna is admirable. Within a short period he had gained a degree of knowledge of the system that very few, even among Jaffna Hindus and, perhaps, no other Sinhalese possesses. Much of the credit goes to Rameshwaralier. But the very valuable and extensive findings are marred by a few factual and conceptual errors.

I am familiar with Jaffna and have some understanding of the operation of Jaffna's caste system, but have not studied any literature on the subject. However, a good knowledge of the Indian caste system was an essential requirement for my Doctoral thesis at Harvard University written in the four year period beginning mid-1985. Since my work was on "A Comparative Analysis of Preferential Policies in the USA, India and Malaysia", the Hindu scripture I focused on was Manu Smriti (Laws of Manu). Since Manu means Man in Sanskrit, it is not clear if it is the collective work of a group of Brahmin scholars or the monograph of an individual Brahmin scholar called Manu. It contains a few contradictions and is terrible in its treatment of Sudras (low caste), women and, worst of all, Untouchables. Untouchables were originally referred to as Durjan (evil people), patronizingly renamed Harijan (God's people) by Gandhi, referred to as Scheduled Castes in the Indian Constitution and now increasingly referred to by their Gujarati name, Dalit (oppressed people). It is interesting to compare the evolution of the term used for US Blacks, from Niggers to Negro, from Negro to Coloured (a patronizing euphemism) and now either Blacks or Afro-Americans (the latter misleading in that it excludes Non-Black Americans of African origin, e.g. those of Arab origin).

I confess that Manu Smriti is the only Hindu scripture that I have some significant familiarity with. As a Brahmin who has opted to retain his caste title Iyer (in contrast to Nehru who opted to drop his caste title of Pandit, the Kashmiri equivalent of the Tamil Iyer), Rameshwaralier may not be a totally disinterested scholar. He would surely be familiar with Manu Smriti, but would he be willing to publically repudiate it? My reading of Manu Smriti was from an excellent translation from the original Sanskrit by E.W. Hopkins (eds), *The Ordinances of Manu*, 1884, London, Trubner and Co., available at Widener library, Harvard University and many other good libraries across the globe.

The caste system has been evolving in the millennia since the Vedas were written, and the number of caste subdivisions have kept on multiplying for various reasons. By the time Manu Smriti was written in the early part of the First Millennium AD there were very many castes, with regional variations, but all within the Varna system ordained by the Vedas. Now, almost another two millennia later, the number of castes have grown further, again with regional variation. The number of castes in India is of the order of 2000-3000 (Marriott and Inden, 1974, "Caste Systems", *Encyclopedia Britannica*, Macropaedia 3, Chicago, William Benton; Ghurye, 1960, "Caste, Class and Occupation", Bombay Popular Prakashan; Hutton, 1961, "Caste in India: Its Nature, Function and Origins", Bombay, Oxford University Press; Galanter, 1984, "Competing Equalities", Delhi, Oxford University Press and Berkeley, Los Angeles and London, University of California Press. In comparison to India the number of castes in Jaffna is miniscule.

Some of the prescriptions of Manu Smriti are too terrible to be fully operational anywhere any time, but the Brahmin orthodoxy retains it as a guide and a model to be selectively cited. On one of the clauses prescribed is that any who leaves the shores of India loses caste. Thus when Gandhi returned from London in the 19th century

after qualifying as a Barrister, he had to go through an elaborate ceremony conducted by the Brahmin hierarchy to restore him to his Vaishya status. This clause in the Manu Smriti has not been deleted but is now utterly impractical and no longer observed. In any case by the time Gandhi went abroad the second time he had lost faith in the Manu Smriti.

Regarding caste mobility, "A Sudra, though emancipated by his master, is not redeemed from servitude. Since this is innate in him, who can set him free from it? (Manu Smriti, VIII, 414) under the rule quoted earlier, all of us in Sri Lanka (and in any country outside India) are, at best Sudra, not entitled to wear the sacred thread. This applies to the Vellalars in India who too are not entitled to wear the sacred thread- the hallmark of the high castes under the Varna system, yet prevailing in India.

Neville's claim that the Vellalars of India acquired wealth and lands may be partly true but contradicts Manus Smriti. Manu has decreed that a Sudra who has acquired wealth causes offense to Brahmins (Manu Smriti, X129) and that a Brahmin may take possession of the property of the Sudra with perfect peace of mind (Manu Smriti V111 ,147). Untouchables are singled out for the most demeaning and malicious treatment. Manu decreed that the dwelling of Chandalas and Svapakas shall be outside the village, that they must be made apapatras(out castes) and that their wealth shall be dogs and donkeys' (Manu Smriti X, 51). Their conditions of life are to be as humiliating as possible; they must wear the garments of the dead, use only broken dishes, and any ornaments must be of iron, (Manu Smriti X 52).

The caste system in Jaffna is terrible (I am fully with Neville on this) but that in India is immeasurably worse. Caste related rapes and murders occur frequently, often with the complicity of the Indian police and local political leadership. It is true that the caste system as practiced in Sri Lanka is different (milder and less rigid) to that in India. Regarding temple entry, it had been a major problem in India for centuries and was central to Gandhi's movement for the emancipation of Untouchable.

Gandhi had a long and bitter feud with Dr. Ambedkar but in a gesture that was both magnanimous and brilliant, Dr.Ambedkar was appointed Chairman of the Drafting Committee of the Indian Constitution which is an incomparable model of Affirmative Action, covering even the elections to National and State legislatures but and only excluding the private sector. As Sir Ivor Jennings has stated "The ghosts of Sidney and Beatrice Webb stalk through the pages of the text of the Directive Principles [of the Indian Constitution]". (Jennings, Ivor, 1953, Some Characteristics of the Indian Constitution, Madras, Oxford University Press). All the above quotations from Manu Smriti are in my book "Discrimination with Reason?" 1997, Oxford University Press, Delhi.

What are the origins of the Low Country and Kandyan Sinhalese and Tamil Caste systems.We can only speculate' Our ancestors, apart from some miscegenation with Arabs, Europeans, Indonesians etc., came from deeply caste conscious India. But those who left India went out of the reach of the Vedas and Manu Smriti and the Varna system. The dominant classes (not necessarily the absolute majority) devised their own caste systems with themselves on the top, with no scriptural justification. These were the Radalas, other Gowigama elite and Vellalar elite. It is unfortunate that while the state acted against untouchability among the Tamils (that was politically opportune), it did not abolish caste altogether (that would not have been politically opportune). Even the Mahanayakes practice it ("e.g. non-Govigama are not accepted for ordination by the Malwatte and Asgiriya Mahanayakas). Many Sinhalese think that the caste is exclusively a Tamil problem, but that is not true as evident

in the matrimonial columns of the Sinhalese newspapers. Matrimonial columns of the Tamil newspapers are no better. We have yet to produce a Gandhi or an Ambedkar or, even better, evolve into a people conscious of the need to be a nation with equal rights for all citizens.

The Sinhalese and Tamils caste systems are closer to each other than to that sanctioned by the Vedas and Manu Smriti. Although they lack religious sanction, the Sri Lankan caste systems are backed by the dominant classes in Sri Lanka, whereas in India the high castes (Brahmins, Kshatriyas and Vaishyas) are too small in numbers to retain political power post universal adult franchise. They have already lost their grip on Indian politics and the trend is likely to continue with the mixed category referred to in the Indian Constitution as Other Backward Classes producing most of the leadership, eg: Prime Minister Modi. In Sri Lanka the Gowigamas and Vellalars are yet firmly in control. If for some reasons the top leadership must pass temporarily to some one of the other caste, it will not be a caste that could threaten the supremacy of the Gowigamas but a caste very low in the hierarchy and dependent on the Gowigama leaders. The rise of the LTTE among the Tamils is “an exception that proves the rule” in that it rose through the bullet, not the ballot. With their defeat the Vellalars have quickly resumed their grips on Tamil politics as have the Gowigamas on Sinhala politics. Erosion of caste is inevitable but is, sadly, this process is likely to be long drawn out.

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